HIGH COURT OF JUDICATURE AT SULTANGANJ

State of Marandu
versus
Prakash Rawat and Others

Criminal Appeals (Capital) Nos. 412, 413, 414 and 415 of 2023
with
Death Sentence Reference No. 7 of 2023

Arising out of Sessions Trial No. 318 of 2019, Case Crime No. 88 of 2019,
Police Station Bhadrapur, District Sultanganj, State of Marandu
Offences: Sections 302/34 and 201 Indian Penal Code, 1860

Appellant	Role in prosecution case
A-1 Prakash Rawat	Alleged claimant to the tenanted flat; alleged principal organiser
A-2 Mohit Rawat	Younger brother of A-1; alleged to have led the assault
A-3 Suresh Tandon	Cousin of A-1 and A-2; alleged to have supplied the weapon and the keys
A-4 Arvind Chauhan	Employee of a transport firm; alleged to have driven the vehicle used to move the bodies

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Dramatis personae

Name	Description
Kamla Devi (about 52)	Deceased. Tenant of Flat G-2/14, Ramnagar Extension Phase II, Bhadrapur. Widow.
Hemant Yadav (28)	Deceased. Son of Kamla Devi; worked as a delivery rider.
Kishan Lal (34)	Deceased. Nephew of Kamla Devi; lived with them since January 2019.
Prakash Rawat (A-1)	Accused. Claims the flat was purchased by his late father; had a pending dispute with the tenants.
Mohit Rawat (A-2)	Accused. Brother of A-1; runs a hardware shop.
Suresh Tandon (A-3)	Accused. Cousin; electrician by trade.
Arvind Chauhan (A-4)	Accused. Driver with Shree Balaji Roadlines; no prior criminal record.
Vikram Soni (PW-1)	Informant; resident of the neighbouring colony.
Inspector R.K. Bisht (PW-12)	Station House Officer and Investigating Officer.
Naresh Pal	Second driver at Shree Balaji Roadlines. Not examined; not an accused.
Ramesh Gupta	Proprietor, Shree Balaji Roadlines. Not examined by the prosecution.

PART I - THE APPEALS AND THE PROSECUTION CASE

1. These four capital appeals are directed against the common judgment and order dated 19 September 2023 passed by the Additional Sessions Judge (Fast Track Court No. 2), Sultanganj, in Sessions Trial No. 318 of 2019. By that judgment the four appellants were convicted under Sections 302 read with 34 and 201 of the Indian Penal Code. Each appellant was sentenced to death under Section 302/34 with a fine of Rs. 1,00,000 and to five years' rigorous imprisonment under Section 201 with a fine of Rs. 10,000. The Trial Court has made a reference under Section 366(1) Cr.P.C. for confirmation of the death sentences. The appeals and the reference are heard together.

2. The prosecution case, in outline, is as follows. Three persons - Kamla Devi, her son Hemant Yadav and her nephew Kishan Lal - were living as tenants in Flat G-2/14, Ramnagar Extension Phase II, Bhadrapur, since 2016. A-1 claimed that the flat belonged to his late father, Gopal Rawat, and that the tenants had stopped paying rent and refused to vacate. A civil suit (Original Suit No. 211 of 2018) for eviction was pending before the Civil Judge, Junior Division, Sultanganj. According to the prosecution, the four appellants, acting together, killed the three occupants on the night of 12-13 March 2019 inside the flat in order to obtain vacant possession, loaded the bodies into a goods tempo, and abandoned them near a disused brick kiln on the Bhadrapur-Karanpur road. The prosecution says the bodies were wrapped in bedsheets and left in an irrigation channel (the 'kiln nala').

3. The prosecution case rests entirely on circumstantial evidence. No person claims to have seen the killing. No person claims to have seen the appellants with the deceased on the night in question. The prosecution relies on seven circumstances: (i) a property dispute giving motive; (ii) a statement attributed to A-1 made to a shopkeeper shortly before the incident; (iii) the movement of a goods tempo, registration MR-07-GT-4521, on the night in question; (iv) call-detail and tower-location records of the mobile phones of the appellants; (v) recoveries made on the disclosure of A-2 and A-3; (vi) bloodstains and a weapon; and (vii) a bank deposit into the account of A-4 two days after the incident.

4. The informant, PW-1 Vikram Soni, lodged a written report at Police Station Bhadrapur at 07:35 hours on 14 March 2019 stating that three bodies wrapped in cloth were lying near the brick kiln. The First Information Report was registered against unknown persons as Case Crime No. 88 of 2019 under Sections 302 and 201 IPC. General Diary entry no. 14 of the same date records the registration at 07:50 hours.

5. The Trial Court found the circumstances to be a complete chain and held the case to be in the 'rarest of rare' category because the three victims included a woman and the bodies were concealed. The appellants contend that the chain is broken at several links, that the investigation was one-sided and defective, and that at the very least the evidence against some of them is so thin that no reasonable court could convict.

6. It is relevant to record at the outset that the prosecution has not alleged any direct role for A-4 in the alleged assault. His role, as per the charge-sheet, is confined to driving the tempo on which the bodies were transported. The charge-sheet describes him as 'a person who knowingly assisted in the commission of the offence by disposing of the bodies', and he has been charged under Section 302/34 on the strength of common intention.

PART II - CHRONOLOGY OF EVENTS

7. The following chronology has been compiled by the Court from the FIR, the case diary, the General Diary, the call-detail records, the CCTV extracts and the oral evidence. Where sources conflict the conflict is noted in the right-hand column and is dealt with later in this judgment.

Date / time	Event	Source	Remark
Dec 2018	A-1 sends a legal notice to Kamla Devi demanding vacation of the flat.	Ex. Ka-31 (copy of notice)	Reply dated 02.01.2019 denies A-1's title.
06.03.2019	Hearing in OS 211/2018; next date fixed 27.03.2019.	Ex. Kh-2 (order sheet)	Defence exhibit.
11.03.2019, evening	A-1 allegedly tells shopkeeper PW-4: 'The flat will be empty by this week.'	PW-4	PW-4 turned hostile on one point.
12.03.2019, 18:40	Hemant Yadav last seen by a colleague at a delivery hub, leaves shift.	PW-9	Last confirmed sighting of any victim.
12.03.2019, 21:15	Visitor register at District Hospital records entry of 'A. Chauhan' to visit patient in Ward 6.	Ex. Kh-7 (defence)	No exit time recorded. Patient is A-4's mother.
12.03.2019, 22:40	Mobile of A-4 attaches to Tower T-117 (Karanpur Chowk), 18 km from the flat.	CDR Ex. Ka-44	Tower sector also covers the Karanpur road.
12.03.2019, 23:05	Fleet GPS unit of tempo MR-07-GT-4521 goes offline.	Ex. Kh-9 (GPS log)	Offline until 01:30; cause not explained.
13.03.2019, 00:48	CCTV at Sunrise Petrol Pump, Bhadrapur bypass, shows a white tempo; plate partly legible ('..07-GT-4_2_').	Ex. Ka-47 (extract)	Driver's face not visible. Time-stamp not certified.
13.03.2019, 01:10	Mobile of A-2 attaches to Tower T-044 (Ramnagar Extension).	CDR Ex. Ka-45	Tower covers the flat and the Rawat family home.
13.03.2019, 02:10	Mobile of A-4 attaches to Tower T-044.	CDR Ex. Ka-44	Tower covers also the highway towards A-4's own residence.
13.03.2019, 02:30	Mobile of A-3 is switched off. Remains off until 09:00.	CDR Ex. Ka-46	Prosecution: deliberate. Defence: routine load-shedding.
13.03.2019, 06:10	Cowherd finds bundles near kiln; does not approach.	PW-1 (hearsay)	Cowherd never identified.
14.03.2019, 07:35	Written report of PW-1 lodged at PS Bhadrapur.	Ex. Ka-1	See para 14 - bodies reportedly lay one full day.
14.03.2019, 07:50	FIR registered; GD entry no. 14.	Ex. Ka-5, Ka-6	FIR copy reached the Magistrate on 16.03.2019.
14.03.2019, 09:20	I.O. reaches spot; inquest begins 10:15.	PW-12, Ex. Ka-8	Inquest witness PW-7 says it was at the police outpost.
15.03.2019, 11:00	Post-mortem on all three bodies.	PW-10, Ex. Ka-12 to 14	Doctor estimates death 30-40 hours earlier.
15.03.2019, 16:00	A-4 deposits cash? No - Rs. 15,000 credited by transfer into A-4's account from account of A-2.	Ex. Ka-52 (bank statement)	Two days after incident. Defence: salary-advance pattern.
20.03.2019, 22:30	A-1 and A-2 arrested near bus stand, Sultanganj.	Arrest memo Ex. Ka-20	Time conflicts with PW-12 (says 18:00).

Date / time	Event	Source	Remark
21.03.2019, 06:15	A-3 arrested at his home.	Ex. Ka-21	-
21.03.2019, 11:40	A-4 arrested at the transport depot, Karanpur.	Ex. Ka-22	Arrest memo gives 11:40; G.D. gives 14:05.
21.03.2019, 15:00	Disclosure by A-2; weapon (iron rod) recovered from a well near Rawat family farm.	Ex. Ka-23, Ka-24	A-3 is also named in the disclosure; A-4 is mentioned once, as 'the driver'.
22.03.2019	Tempo seized from depot; swabs from cargo bed.	Ex. Ka-26	Seized 9 days after the incident, after two intervening trips.
24.05.2019	Charge-sheet filed against A-1 to A-4.	Ex. Ka-60	-

8. It will be seen from the table that the prosecution has no timestamp placing any of the appellants, with certainty, at the flat between 22:00 on 12 March and 03:00 on 13 March 2019. The only items that fix any person to a place in that window are mobile tower attachments, which indicate a coverage area and not a position, and a CCTV frame in which the driver of the tempo cannot be identified.

Key locations and distances

Location	Address / area	Distance from flat	Timestamps tied to it
Flat G-2/14	Ramnagar Extension Phase II, Bhadrapur (Tower T-044)	-	Hemant leaves 18:40 on 12.03; lock broken 15.03 afternoon
Rawat family home	Ramnagar Extension, Bhadrapur (Tower T-044)	0.8 km	A-1 and A-2 phones on T-044 from 20:00 on 12.03
Tea stall (PW-3)	Ramnagar Extension crossing	0.5 km	11.03 evening remark by A-1
Hardware shop of A-2 (PW-4)	Main Market, Bhadrapur	2 km	12.03, 19:30 conversation
District Hospital, Ward 6	Sultanganj-Karanpur road (Tower T-117 side)	17 km	Visitor entry 21:15 on 12.03; no exit time
Karanpur Chowk	Tower T-117	18 km	A-4 phone 22:40 on 12.03; 04:25 on 13.03
Sunrise Petrol Pump	Bhadrapur bypass	6 km	CCTV 00:48 on 13.03
Brick kiln nala	Bhadrapur-Karanpur road, near disused kiln	9 km	Cowherd 06:10 on 13.03; report 07:35 on 14.03
Balaji Roadlines depot	Karanpur industrial area	19 km	Key returned 04:10 on 13.03; A-4 arrested 11:40 / 14:05 on 21.03
Rawat family farm and well	Village Chandpur, off Karanpur road	11 km	Rod recovered 15:00 on 21.03
Police Station Bhadrapur	Bhadrapur town	3 km	FIR 07:50 on 14.03; GD entry 14

PART III - THE INVESTIGATION

A. Registration of the FIR and the first inspection

9. The written report (Ex. Ka-1) was submitted by PW-1 Vikram Soni, who runs a poultry feed shop. He stated that on the morning of 14 March 2019 a villager told him that 'some bundles' were lying near the brick kiln and that he went to look and saw feet protruding from a bedsheet. He said nothing in the report about the cowherd having first noticed the bundles on 13 March. The report names no suspect. No identification of the deceased is recorded in the report.

10. The I.O., Inspector R.K. Bisht (PW-12), states that he reached the spot at 09:20. He prepared a site plan (Ex. Ka-7) showing the irrigation channel and the position of the three bodies. The site plan does not show the metalled road, the tyre marks he later described in his deposition, or the distance of the spot from the nearest habitation. The case diary of 14 March contains a note that 'tyre marks of a heavy vehicle were seen' but no cast or photograph was taken.

11. The inquest report on each body (Ex. Ka-8 to Ka-10) was prepared on 14 March. PW-7, the public witness to the inquest, deposed that he signed the papers 'at the police outpost, not at the kiln'. He was declared hostile on this point. The I.O. maintained that the inquest was done on the spot. The three inquest reports bear the same time of commencement, 10:15 hours, though they were allegedly prepared one after another.

B. Identification of the deceased

12. None of the three bodies was identified on 14 March. The case diary of that date records that photographs were circulated to police stations in three districts. On 15 March a woman named Sunita Verma (not examined) is recorded in the case diary as saying that the bodies resembled her neighbours from G-2/14. The I.O. visited the flat that afternoon and found it locked. Two neighbours, PW-5 and PW-6, were present when the lock was broken. The I.O. admits he did not seek the permission of any Magistrate to break the lock.

13. The identification of Kamla Devi was made on the basis of her ration card and a photograph recovered from the flat, and by her brother, who is not a witness. Hemant Yadav was identified by his employer's identity card found in a pocket of a pair of trousers wrapped with one body. Kishan Lal was identified by a tattoo on the forearm, spoken to only by PW-9. No fingerprints of the deceased were taken, though the regulations require it for unidentified bodies.

C. Search of the flat and the alleged recoveries

14. From the flat the I.O. collected bloodstained scrapings from a wall, a bloodstained cotton rope, a steel tumbler and a diary. The recovery memo (Ex. Ka-14) records the presence of PW-5 and PW-6 as public witnesses. Both deposed that they had signed 'blank papers' at the police station and that the police 'wrote the rest later'. The memo records that a sample of wall scrapings was sealed with the I.O.'s own seal, but the seal impression was never forwarded to the laboratory along with the sample.

15. The I.O. admits that the flat had been locked from outside when he reached it, and that the lock bore no signs of forced entry by anyone prior to himself. The prosecution says that the killing took place inside the flat. Yet no neighbour reports any sound of struggle, and the flat is on the second floor of a building with eight occupied flats. The doctor who conducted the post-mortem records that death was due to head injuries; it is common ground that such injuries are consistent with a number of weapons and with a number of locations.

D. The arrests and disclosures

16. A-1 and A-2 were arrested on the night of 20 March 2019. The arrest memo gives the time as 22:30. The I.O. deposed that the arrest was made at 18:00. The General Diary (entry no. 41) records that the police party left the station at 20:40. The discrepancy is not explained. A-3 was arrested at 06:15 the next morning at his residence.

17. A-4 was arrested at the depot of Shree Balaji Roadlines at 11:40 on 21 March, according to the arrest memo. The General Diary records the arrest at 14:05. At the time of his arrest A-4 was in uniform, on duty, and had completed a delivery to a neighbouring district the previous night. The prosecution's explanation is that he 'did not try to flee'. The reason A-4 was suspected at all appears from the case diary entry of 20 March, which records a statement of A-2, made while in custody on the night of the arrest, that 'the vehicle and the driver were arranged by Suresh'. No name is mentioned in that entry. The name of A-4 appears first in the case diary of 21 March, after A-3 was arrested.

18. The disclosure statement of A-2 (Ex. Ka-23), recorded at 15:00 on 21 March, led to the recovery of an iron rod from a well about 600 metres from the Rawat family farm. The rod bore no visible bloodstains when recovered, and was sent for chemical examination eleven days later. The disclosure statement mentions 'the driver' once. It does not name A-4. The words 'Arvind Chauhan' were added in a different hand on the typed copy of the memo; the I.O. said that he made the interlineation 'for clarity' after the memo was signed. The witnesses to the disclosure, PW-8 and PW-11, say that they did not see the name written.

E. The tempo

19. The I.O. says that the tempo bearing registration MR-07-GT-4521 was identified from the CCTV footage obtained from the petrol pump on the bypass. The footage extract is five minutes long; the plate is partly legible, the visible characters being consistent with several vehicles. The footage was copied on to a pen-drive by a constable; no certificate under Section 65B of the Evidence Act was obtained at the time. A certificate dated 04.06.2019, signed by the petrol pump manager, was produced later.

20. The registered owner is Shree Balaji Roadlines, whose proprietor Ramesh Gupta was not examined. The tempo was seized from the depot on 22 March. The company's vehicle movement register shows that the tempo made two trips on 16 and 18 March. The tempo was washed on 15 March, as per the depot's wash-bay slip, which the I.O. did not collect. The swabs taken from the cargo bed on 22 March are recorded as 'dark stains'. They were sent to the laboratory on 08 April.

21. The company's key register for the night of 12 March (Ex. Kh-10) records that the key of MR-07-GT-4521 was issued at 19:30 to 'N. Pal' and returned at 04:10 the next morning to 'A.C.'. The prosecution says the entry in the issue column is a forgery created later to protect A-4. The defence says it is an ordinary record in the company's hand and that the return entry was countersigned by a different employee on shift. The register was not sent to a handwriting expert by either side.

F. The bank transfer

22. The I.O. obtained the bank statement of A-4's savings account. It shows a transfer of Rs. 15,000 on 15 March 2019 from the account of A-2. The prosecution says this was the price paid for driving the tempo. A-4's explanation in his statement under Section 313 is that A-2 owed him money for a second-hand motorcycle that A-4 had sold him in January. The statement shows seven earlier credits into the account of A-4 from the company, ranging from Rs. 4,000 to Rs. 12,000, that the defence says are salary advances. No document of the motorcycle sale was produced.

G. Matters the investigation did not address

23. The following were not done: the fingerprints on the tempo's steering wheel and cargo door were not lifted; the swabs from the cargo bed were never compared by DNA against any of the victims or the accused; the statement of the second driver of the company, Naresh Pal, was never recorded; the proprietor Ramesh Gupta was not questioned about the key register; the GPS service provider was not asked why the unit went offline between 23:05 and 01:30; no identification parade of any accused was held for the persons who claim to have seen them; the tower dump of all phones in the cell near the flat was not obtained; the neighbouring flats were not canvassed for CCTV; and the district hospital's visitor register was not examined by the police at all. It was produced, much later, by the defence.

PART IV - ORAL EVIDENCE

24. Thirteen witnesses were examined by the prosecution. The defence examined one witness, DW-1. The substance of their depositions is summarised below. The summaries are from the Court's own notes; where a witness was declared hostile, the part of the examination-in-chief and the part of the cross-examination by the Public Prosecutor are separately noted.

PW-1 Vikram Soni - the informant

25. PW-1 deposed that he runs a poultry feed shop near the Bhadrapur-Karanpur road. On the morning of 14 March 2019 he went to the kiln because a villager told him that 'some bundles' were lying there. He saw bodies wrapped in white bedsheets. He went to the police station and lodged the report Ex. Ka-1. In cross-examination he admitted that he did not know any of the deceased or the accused, that he had been told by 'someone in the market' that the bodies had been lying 'since yesterday', and that he could not name the person. He said he had never seen A-4 before the day he appeared in court. He is not an eyewitness to the incident and nobody has suggested that he is.

PW-2 Dr. S. Menon - the post-mortem doctor

26. PW-2 conducted the post-mortem on all three bodies on 15 March 2019 beginning at 11:00. He proved Ex. Ka-12, Ka-13 and Ka-14. He found multiple head injuries in each body; skull fractures in the case of Kamla Devi and Kishan Lal; he opined that death was due to head injuries caused by a blunt, heavy object. He estimated the time of death as 30 to 40 hours before the post-mortem, that is, between about 19:00 on 13 March and 05:00 on 14 March. In cross-examination he said that 'an error of twelve hours either way is possible' given the cold weather and the wet location. He was asked whether death at 23:00 on 12 March could be excluded and he replied that it 'cannot be wholly excluded but is less likely'. He accepted that he did not examine the weapon at any stage.

27. **[Note for the Court - the discrepancy.]** If the doctor's estimate is accepted, the deaths occurred roughly 20 hours after the time on which the prosecution case is built. On the prosecution's own chronology the tempo was at the petrol pump at 00:48 on 13 March; on the doctor's evidence the three persons may have been alive at that time.

PW-3 Gulab Singh - the shopkeeper

28. PW-3 runs a tea stall at the Ramnagar Extension crossing. He deposed that on the evening of 11 March A-1 and A-2 had tea at his stall, and that A-1 said to A-2 in his hearing: 'Two more days and this will be over.' He said he did not know what 'this' referred to. In cross-examination he said that the brothers 'quarrelled regularly about the shop and the land' and that he had understood the remark to refer to a bank loan instalment. He was declared hostile on application of the prosecution after he deviated from the statement made under Section 161 Cr.P.C. The statement as recorded by the I.O. said: 'A-1 said the flat will be empty in two days.'

PW-4 Mahesh Kumar - the shopkeeper (hardware)

29. PW-4 owns a hardware shop adjoining that of A-2. He deposed that on 12 March at about 19:30 he saw A-2 and a 'lean man in a light shirt' in conversation. He said that on the next day he noticed that A-2's shop was closed. In cross-examination he said that he could not identify the 'lean man' and that he did not remember whether the man was A-3 or A-4 or neither. In court he pointed to A-4 as the man, but then added: 'He looks like him, but I cannot be certain.' He admitted that the police had shown him a photograph of A-4 before his statement was recorded. No test identification parade was conducted.

PW-5 and PW-6 - neighbours; public witnesses to the search

30. PW-5 Anita Sharma and PW-6 Dev Kumar live in the building where the flat is situated. Both knew the deceased as quiet tenants who kept to themselves. Both said that on the night of 12 March they heard nothing unusual. Both deposed that the police broke the lock of the flat on 15 March in their presence and that police personnel went inside alone; they were not allowed in. Both admitted their signatures on the recovery memo but said that they signed at the police station. They were declared hostile. In cross-examination by the Public Prosecutor they denied that they had made a statement under Section 161 that 'a bloodstained rope was seen in our presence'.

31. PW-5 added that she saw the deceased Hemant Yadav 'leaving with a bag' on the evening of 12 March, and that this was usual because he worked in the evenings. PW-6 said that the tenants had told him they were 'afraid of the landlord's men' but had no specific complaint. When asked who the 'landlord's men' were, he said that A-1 sent a rent-collector named 'Ravi' and that he had never seen A-3 or A-4 in the building.

PW-7 Joginder Lal - public witness to the inquest

32. PW-7 runs a cycle repair shop near the police outpost. He deposed that on 14 March he was asked by a constable to sign some papers and that he did so 'at the outpost at about noon'. He said the papers were already filled in. He was declared hostile and in cross-examination by the Public Prosecutor said that he did not go to the kiln at all.

PW-8 Rajan Tiwari and PW-11 Sudesh Pandey - witnesses of disclosure and recovery

33. PW-8 and PW-11 are labourers who live near the Rawat farm. They said that on 21 March the police came to the farm with A-2 in custody, that A-2 led the police to a well, and that an iron rod was brought out of the well by a diver. They did not hear A-2 say anything to the police. PW-11 said that the typed copy of the memo (Ex. Ka-23) bore no name other than A-2's when he signed it. PW-8 admitted that he knew A-2 as a customer of his employer and that he had earlier seen A-2 and A-3 together at the farm on several occasions. Neither knew A-4.

PW-9 Deepak Rathi - colleague of Hemant Yadav

34. PW-9 worked with Hemant Yadav at a delivery hub. He said Hemant left the hub at 18:40 on 12 March. He identified the forearm tattoo of Kishan Lal as one he had seen when Kishan visited the hub in February. He accepted that he saw the body only in a photograph and that the photograph he was shown by the police was of poor quality. He said that Hemant had told him in the previous week that he feared 'the landlord's people' but had not mentioned any name. He did not name A-4.

PW-10 Dr. Anil Prasad - doctor who examined viscera

35. PW-10 prepared the report on the viscera and found no poison. He further produced the seal-intact report of the laboratory on the iron rod. The laboratory report (Ex. Ka-38) states that 'traces of a dark deposit' were found on the rod, but 'the quantity was insufficient for serological grouping'. The report on the wall scrapings (Ex. Ka-39) found 'human blood, group not determined'. The report on the cargo-bed swabs (Ex. Ka-40) states: 'Dark stains. Presence of blood is positive; species not determined; quantity insufficient.'

PW-13 Sub-Inspector Dalbir Rana - the scribe and the officer who arrested A-4

36. PW-13 was posted at PS Bhadrapur. He recorded the FIR and later joined the I.O. in arresting A-4. He said that the arrest of A-4 was made at the depot 'around 11:30'. He accepted that the General Diary entry

says 14:05 and said the delay was 'a clerical matter'. He said that A-4 did not resist and that A-4 told the police at the depot, in the presence of the manager: 'I only drove a load that night; I did not know what was in it.' No such statement is recorded in the arrest memo. The manager was not examined. The statement, if made, is inadmissible under Section 25 of the Evidence Act unless it falls within Section 27, and the prosecution does not claim that it does.

PW-12 Inspector R.K. Bisht - the Investigating Officer

37. The deposition of the I.O. is lengthy and is summarised in Part III above. In cross-examination he made the following admissions. He did not take fingerprints from the tempo. He did not get a handwriting expert to look at the key register. He did not examine Naresh Pal. He accepted that the car park of the depot is open to employees of two companies. He accepted that he did not make any enquiry about where A-4 was on the evening of 12 March, and that he was unaware of the hospital register until the defence produced it. He said that he 'assumed' from the disclosure of A-2 that the driver was A-4 because 'A-4 was the only driver who matched the CDR location'. When asked how many other drivers' phones he had checked, he replied that he had checked none.

DW-1 Dr. Kavita Nair - Medical Records Officer, District Hospital

38. DW-1, summoned by the defence, produced the visitor register of Ward 6 for 12 March 2019. It contains an entry at 21:15: 'A. Chauhan, son, Bed 14'. The adjoining column for 'time out' is blank. The register is maintained by the ward attendant who, DW-1 says, 'writes the entry when the visitor comes and often forgets to fill the exit time'. She confirmed that Bed 14 was occupied by a patient named Savitri Chauhan, aged 64, admitted on 11 March for a hip fracture and discharged on 14 March. She was unable to say whether the visitor in question was the accused or another son of the patient. She did not know whether the patient had more than one son. The Public Prosecutor did not cross-examine her on the point.

PART V - SCIENTIFIC, MEDICAL AND ELECTRONIC EVIDENCE

A. Medical evidence

39. The post-mortem findings are consistent with each of the three deaths having been caused by multiple blows to the head. There is no evidence of sexual assault. The viscera show no poison. The doctor says that the injuries could have been caused by the iron rod recovered from the well but also by 'any similar heavy blunt object, such as a hammer, a wooden beam or a heavy pipe'. No attempt was made to match the dimensions of the injuries to the rod.

40. The time of death estimated by the doctor does not fit comfortably with the prosecution timeline. On the prosecution case the killings took place in the late evening of 12 March; the cargo of bodies was moved at about 00:48 on 13 March; the bodies were left near the kiln thereafter. The doctor's estimate would put death between about 19:00 on 13 March and 05:00 on 14 March. The prosecution has not explained where the bodies were between 00:48 on 13 March and the evening of 13 March if death occurred later. The defence contends that this leaves open the real possibility that the tempo seen at 00:48 was carrying nothing connected with the case.

B. Forensic reports

Item	Exhibit	Result	Limitation
Iron rod from well	Ka-38	Dark deposit; blood group not determined	Insufficient quantity; sent 11 days after recovery
Wall scrapings from flat	Ka-39	Human blood; group not determined	Seal impression not forwarded; not matched to any victim
Cargo-bed swabs of tempo	Ka-40	Blood positive; species not determined	Tempo washed on 15.03; no DNA profiling attempted
Cotton rope from flat	Ka-41	No blood detected	-
Bedsheets in which bodies were wrapped	Ka-42	Mixed human blood; group A in one; others not determined	Not matched to specific victims
Fingerprint lifted from steering wheel of tempo	Not collected	-	Not attempted by I.O.

41. It is therefore not established by scientific evidence that the blood on the rod, on the wall of the flat or on the cargo bed was that of any of the three deceased. Nor is it established that the blood in these places was the same blood. The prosecution relies on the combined circumstance that blood was found at all three places. The defence replies that blood is present in countless vehicles used for carrying goods and animals, and that the tempo was in regular commercial use.

C. Call-detail records and tower locations

42. The prosecution produced the call-detail records for the phones of the four appellants through a nodal officer of the telecom operator (Ex. Ka-43 to Ka-46, with a certificate under Section 65B). The nodal officer was not cross-examined on the technique of locating the handset. The tower locations are as follows.

Accused	12.03 evening / night	13.03 early morning	Comment
A-1 Prakash	T-044 (Ramnagar Ext.) from 20:00 to 23:30	T-044 till 07:00	At or near home, which lies within T-044 range, throughout. Consistent with being home.

Accused	12.03 evening / night	13.03 early morning	Comment
A-2 Mohit	T-044 till 23:50	T-044 at 01:10; T-044 till 07:30	Consistent with being at home or at the flat; both are within coverage.
A-3 Suresh	T-061 (Sector 4) till 22:15; then no data	Phone off 02:30 to 09:00	Gap of 4.5 hours. Prosecution: switched off to avoid tracing.
A-4 Arvind	T-117 (Karanpur Chowk) at 22:40	T-044 at 02:10; T-117 at 04:25	Eighteen kilometres from the flat at 22:40; the next recorded location 02:10 is near the flat; ends at depot tower at 04:25.

43. The case against A-4 on this circumstance is that his phone was close to the flat at 02:10, ninety minutes after the tempo was seen at the petrol pump on the bypass. The defence points out that tower T-044 also covers the arterial road on which A-4 would pass if he were returning the tempo to the depot from a delivery at the Karanpur end, that the tower records only the cell and not the handset's distance, and that the phones of Naresh Pal and the other drivers were never examined. The defence also points to the hospital register, which would explain his position at 21:15 and, if the exit time was between 22:00 and 22:30, would account for the T-117 attachment at 22:40 as consistent with travelling from the hospital (which is on the Karanpur side) towards the depot.

D. CCTV evidence

44. The CCTV footage of the Sunrise Petrol Pump is at Ex. Ka-47. The petrol pump manager said that the system clock runs 'a few minutes slow or fast depending on the week'. He did not know the offset on 13 March. The footage shows a white goods tempo with a partly visible plate stopping at a diesel pump for about three minutes; the driver stays inside; the person who pays is not seen. The camera does not cover the cabin. The prosecution says that the plate is that of MR-07-GT-4521. The defence points out that the plate characters visible would also be consistent with MR-07-GT-4521, 4821, 4527 and others. The manager said that 'at least four such white tempos' fuel at that pump regularly.

45. The footage was not produced in court with a hash value. The pen-drive was kept in the malkhana without a seal for six days. No cloning report was filed. The certificate under Section 65B, as noted above, was signed on 04 June 2019 by a person who had no personal knowledge of the copying operation.

PART VI - STATEMENTS OF THE ACCUSED UNDER SECTION 313 Cr.P.C.

46. After the prosecution evidence was closed, the Trial Court examined each of the accused under Section 313 Cr.P.C. The Court has read the record of the examination. The questions put were largely composite. In respect of the circumstances relied on against A-4, only four questions were put to him, summarised below.

Question put to A-4	Answer recorded
1. It is in evidence that tempo MR-07-GT-4521 was seen at the petrol pump at 00:48 on 13.03.2019. What do you say?	I do not know. I was at the hospital in the evening; then I was on duty.
2. Your phone was located at Tower T-044 at 02:10 on 13.03.2019. What do you say?	I was returning to the depot. I live in that direction.
3. A sum of Rs. 15,000 was credited to your account by A-2 on 15.03.2019. What do you say?	He owed me money for a motorcycle.
4. Do you have anything more to say?	I am innocent. I was not there.

47. No question was put to A-4 on the key register, on the hospital register (the defence had not yet produced it), on the statement attributed to him at the depot, on the alleged interlineation in the disclosure memo, or on the doctor's estimate of the time of death. The prosecution case that the tempo was driven by A-4 rests in part on these matters.

48. A-1 and A-2 state that they have been falsely implicated by the tenants' relatives because of the civil dispute. A-2 states that the disclosure statement was written by the police and signed by him under pressure. A-3 states that his phone was off because of a faulty battery; he produced a repair-shop bill dated 14 March 2019 for a battery replacement (Ex. Kh-5), the authenticity of which was not tested.

49. A-1 admits that he told PW-3 'two more days' but says that the remark was about a bank instalment on which the family was in default; a bank letter dated 02.03.2019 shows an instalment due on 13 March (Ex. Kh-3). The bank officer was not called.

Alibi and defence documents

Ex.	Document	Used by	What it shows
Kh-2	Order sheet, OS 211/2018	A-1	Civil case pending; a hearing on 27.03.2019 - gives A-1 a reason to wait for the court, not to kill.
Kh-3	Bank notice, loan due 13.03	A-1	Alternative meaning of 'two more days'.
Kh-5	Mobile repair bill 14.03	A-3	Explains phone switch-off (weakly: date is after the night).
Kh-7	Hospital visitor register, Ward 6	A-4	Entry 'A. Chauhan' at 21:15 on 12.03; exit time blank.
Kh-9	GPS log of tempo	A-4	Unit offline 23:05 - 01:30; no tracking evidence for the critical window.
Kh-10	Key register of depot	A-4	Key issued to 'N. Pal' at 19:30; returned 04:10 to 'A.C.'
Kh-11	Salary-advance slips (7)	A-4	Pattern of small credits; supports claim that Rs. 15,000 is not unusual.

PART VII - SUBMISSIONS OF THE APPELLANTS

50. **On the entire case.** Mr. Anand Verma, learned Senior Counsel for A-1 and A-2, submitted that the whole case rests on conjecture. No one saw the killing. The flat is not shown by any scientific evidence to be the place of death. The time of death given by the doctor is inconsistent with the prosecution timeline. The alleged recoveries were made on disclosures that were edited later. The chain is broken at every link. He relied on the principles in Sharad Birdhichand Sarda v. State of Maharashtra on the five golden principles governing circumstantial evidence.

51. **On the investigation.** It was urged that the investigation was defective, that the I.O. formed a theory on the first day on the basis of the pending civil dispute and shaped the evidence to fit it, and that the investigation was directed at proving a conclusion instead of finding the truth. Public witnesses to the inquest, the search and the disclosure turned hostile. The I.O. did not hold a test identification parade, did not seek DNA examination, did not get fingerprints, and did not look at the tempo until nine days after the incident.

52. **On the case of A-4.** Ms. Rekha Iyer, learned counsel for A-4, made the following submissions, which the Court sets out in full because they bear on the question of whether the evidence against the fourth appellant can sustain a conviction at all.

53. First, that A-4 is not named in the FIR, is not named in any statement under Section 161 of any independent witness, and is named in the case file only by way of an interlineation in the disclosure statement of a co-accused, which is inadmissible against him under Section 30 of the Evidence Act as a substantive piece of evidence, and in any event is not proved to have been made by A-2.

54. Second, that the only witness who purports to identify A-4, PW-4, did so for the first time in court after having been shown a photograph by the police, and said that he was 'not certain'. A dock identification of this kind has no value without a test identification parade, which the I.O. did not hold. The witness himself could not place the 'lean man' with the Rawat brothers at any time except 19:30 on 12 March, when A-4's hospital entry shows him to have been at the district hospital at 21:15; the two are not inconsistent in time but nothing in the prosecution case shows that the man at the hardware shop was A-4.

55. Third, that the prosecution has not proved that the tempo was driven by A-4. The key register shows the key issued to another driver and returned by 'A.C.' at 04:10, which is some two hours after the earliest time at which the tempo could have returned from the kiln. The GPS log shows that the unit was offline for the very window that matters, which the prosecution has not explained. The petrol-pump footage does not show the driver. The vehicle was shared by at least two drivers, and A-4's fingerprints on its steering wheel (had they been lifted) would have proved nothing as he was a regular driver of it.

56. Fourth, that the mobile tower evidence at most places the handset in a cell of several square kilometres and cannot establish presence at the flat or at the kiln. The same tower serves the arterial road to the depot; A-4's phone attached to T-117 at 22:40 (which is on the hospital side) and to the depot tower at 04:25; and the I.O. admits that he did not check any other driver's phone.

57. Fifth, that the transfer of Rs. 15,000 on 15 March 2019 is a single credit among a series of similar credits, and that A-4's explanation under Section 313 that it was repayment for a motorcycle is neither shown to be false nor was it tested by the prosecution. The Trial Court's treatment of this as the 'price of the crime' is an inference, not evidence. Further, the transfer is from A-2's account in a transparent bank transaction made two days after the incident, which is unlikely if it was a payment for a crime.

58. Sixth, that no motive has been suggested for A-4. He has no known connection with the tenants, with the property dispute or with the Rawat family other than as a casual acquaintance of A-3. The prosecution has led no evidence that he knew what was in the vehicle on the night in question. The statement attributed to him at the depot, that he 'only drove a load' and 'did not know what was in it', if made, would suggest absence of knowledge and would not sustain a charge under Section 34 which requires a shared common intention.

59. Seventh, that the Trial Court did not deal with the hospital register at all. The register was produced by DW-1 and there is no cross-examination on it. At the least it raises a reasonable doubt on whether A-4 could have been at the flat between 21:15 and the time of the alleged killing.

60. Eighth, that the Section 313 examination of A-4 was perfunctory: only four questions were put, and none on the circumstances now relied on, such as the key register or the alleged interlineation. A conviction cannot rest on matters not put to the accused (Prakash v. State of Karnataka; Shivaji Sahabrao Bobade v. State of Maharashtra).

61. **On sentence.** It was lastly submitted that even if guilt is held proved, the death penalty is not warranted: the appellants have no criminal history, the killings were not preceded by torture, and the Trial Court did not call for any report on the possibility of reform or conduct in jail.

PART VIII - SUBMISSIONS OF THE STATE

62. Mr. Harish Dubey, learned Additional Advocate General, submitted that the motive is clearly established by the property dispute and by the statement of A-1 to PW-3. He submitted that A-1 stood to gain most by the death of the tenants as the pending suit would have become infructuous. He relied on the principle that a hostile witness's testimony is not wholly effaced and that the portions that are corroborated may be accepted.

63. As to the recoveries, he submitted that the discovery of the iron rod from the well at the instance of A-2 is admissible under Section 27 of the Evidence Act, whether or not the public witnesses supported the memo, since the fact discovered is the place and the knowledge of the accused as to it. He relied on the proposition that the omission to record the disclosure verbatim does not make the discovery inadmissible.

64. As to the tempo, the learned Additional Advocate General submitted that the tempo was owned by the employer of A-4, that A-4 was the regular driver, that the tempo was seen on the CCTV footage at 00:48, that the cargo-bed swabs gave a positive result for blood and that the phone of A-4 was located near the flat at 02:10. These four circumstances together form a chain that points only to A-4.

65. On the bank transfer, he submitted that the transfer of Rs. 15,000 from A-2 to A-4 two days after the incident is a circumstance that calls for an explanation, and the explanation offered by A-4 is unsupported by any document. He relied on the principle that when facts are especially within the knowledge of the accused, Section 106 of the Evidence Act casts a burden on him to explain.

66. On the defects in the investigation, the State submitted that defects in the investigation cannot by themselves be a ground for acquittal when the remaining evidence is reliable, and that the court must examine the evidence independently of the lapses. As to the doctor's estimate of the time of death, he submitted that an estimate of this kind cannot be relied on to the hour and that the margin of error in the doctor's own evidence is twelve hours.

67. As to the hospital register, the State submitted that it does not prove that the visitor was the appellant, that it does not exclude his leaving soon after 21:15, and that the Trial Court was right in ignoring a document that does not account for the whole night. As to the key register, the State submitted that the document is in the possession of the accused's employer and was produced late; it is an interested document; the signature of 'N. Pal' is not proved.

PART IX - FINDINGS OF THE TRIAL COURT

68. The Trial Court, by its judgment of 19 September 2023, held that the prosecution had proved the following circumstances beyond reasonable doubt: (i) that the three deceased were tenants of the flat; (ii) that A-1 had a dispute over the flat and a motive to have it vacated; (iii) that A-1 told PW-3 on 11 March that the matter would be over in two days; (iv) that the tempo was at the petrol pump at 00:48 on 13 March and was driven by A-4; (v) that the phones of A-2 and A-4 were near the flat at 01:10 and 02:10 respectively and that the phone of A-3 was switched off from 02:30 to 09:00; (vi) that on the disclosure of A-2 an iron rod was recovered from a well and that it bore blood; and (vii) that A-2 paid A-4 Rs. 15,000 two days after the incident.

69. On the hostile witnesses the Trial Court held that their evidence could be accepted 'to the extent it supports the prosecution'. As to PW-5 and PW-6, the Court held that their signatures on the recovery memo were enough to prove the search. As to PW-4, the Court held that the identification of A-4 'though hesitant was truthful in substance'. As to the doctor's estimate of the time of death, the Court held that 'such estimates are only approximate and the margin allows the prosecution version'.

70. As to the key register and the hospital register, the Trial Court's judgment says only that 'the defence has produced certain documents which are of no help to the accused as they do not show where the accused was at the time of the incident'. It does not discuss them further. The Trial Court did not mention the absence of any test identification parade, the unexplained gap in the GPS log, or the failure to examine Naresh Pal.

71. On sentence, the Trial Court held that the killing of three persons, among them a woman, followed by the concealment of the bodies in an irrigation channel, was a crime that 'shocked the collective conscience' and awarded the death sentence to all four appellants. It did not hold a separate hearing on sentence. It called for no report on the antecedents or the conduct of any appellant in custody. It drew no distinction between the role of the alleged principal and that of the alleged driver.

72. The Trial Court summed up: 'the chain of circumstances is complete and the guilt of all four accused stands proved'.

73. **Questions for the Division Bench.** The questions that fall for decision in these appeals, as framed by the Court, are: (I) whether the investigation was so defective as to prejudice the accused; (II) whether the circumstances relied on by the Trial Court have been proved by reliable evidence; (III) whether, as against each appellant separately, the proved circumstances form a complete chain; (IV) whether the Section 313 examination was properly conducted; (V) whether the evidence against A-4 is sufficient for a conviction on the footing of common intention or at all; and (VI) whether, if any conviction is upheld, the death penalty can be confirmed.

74. **Status.** Judgment was reserved on 14 February 2025. The matter is reproduced here at the stage of reserve judgment for the purpose of analysis; no decision of the Division Bench is part of this file.

APPENDIX A - SCHEDULE OF EXHIBITS

Ex.	Description	Proved by	Date
Ka-1	Written report of PW-1	PW-1	14.03.2019
Ka-5	FIR, Case Crime No. 88/2019	PW-13	14.03.2019
Ka-6	General Diary entry no. 14	PW-13	14.03.2019
Ka-7	Site plan of kiln nala	PW-12	14.03.2019
Ka-8 to 10	Inquest reports (3)	PW-12	14.03.2019
Ka-12 to 14	Post-mortem reports (3)	PW-2	15.03.2019
Ka-14	Recovery memo, flat G-2/14 (note: same number used in the case diary for the memo)	PW-12	15.03.2019
Ka-20 to 22	Arrest memos of A-1/A-2, A-3, A-4	PW-12	20-21.03.2019
Ka-23	Disclosure memo of A-2 (typed; interlineation)	PW-12	21.03.2019
Ka-24	Recovery memo of iron rod from well	PW-8, PW-11	21.03.2019
Ka-26	Seizure memo of tempo and swabs	PW-12	22.03.2019
Ka-31	Legal notice by A-1 to Kamla Devi	PW-12	Dec 2018
Ka-38	FSL report on iron rod	PW-10	10.05.2019
Ka-39	FSL report on wall scrapings	PW-10	10.05.2019
Ka-40	FSL report on cargo-bed swabs	PW-10	10.05.2019
Ka-41, 42	FSL reports on rope and bedsheets	PW-10	10.05.2019
Ka-43 to 46	Call-detail records of A-4, A-2, A-3 and A-1, with certificate	Nodal officer	Apr 2019
Ka-47	CCTV extract, Sunrise Petrol Pump	Manager (as PW-12's witness)	13.03.2019
Ka-52	Bank statement of A-4	Bank manager	Mar 2019
Ka-60	Charge-sheet	PW-12	24.05.2019
Kh-2	Order sheet OS 211/2018	A-1	06.03.2019
Kh-3	Bank loan notice	A-1	02.03.2019
Kh-5	Mobile repair bill	A-3	14.03.2019
Kh-7	Hospital visitor register, Ward 6	DW-1	12.03.2019
Kh-9	GPS log of tempo MR-07-GT-4521	A-4	12-13.03.2019
Kh-10	Key register of Shree Balaji Roadlines	A-4	12-13.03.2019
Kh-11	Salary-advance slips (7)	A-4	2018-2019

APPENDIX B - CROSS-REFERENCE OF WITNESSES TO ACCUSED

75. The following table records, for each witness of fact, whether and how he or she refers to each accused. A dash indicates that the witness makes no mention of that accused.

Witness	A-1 Prakash	A-2 Mohit	A-3 Suresh	A-4 Arvind
PW-1 Soni	-	-	-	Never seen before court
PW-3 Gulab Singh (hostile)	Remark 'two more days'; later says it was about a loan	Present with A-1	-	-
PW-4 Mahesh Kumar	-	Spoke to a 'lean man' outside shop on 12.03, 19:30	-	'Looks like him but cannot be certain'; shown photograph earlier
PW-5 Anita Sharma (hostile)	Mentions landlord's people, no names	-	-	-
PW-6 Dev Kumar (hostile)	Rent-collector 'Ravi' sent by A-1	-	Never seen in building	Never seen in building
PW-8 Tiwari	-	Led police to well	Seen with A-2 at farm earlier	Does not know
PW-9 Rathi	-	-	-	-
PW-13 Rana	-	-	-	Arrest; says A-4 said 'only drove a load'
PW-12 Bisht (I.O.)	Motive; arrest	Disclosure; weapon	Switched-off phone; keys alleged	'Only driver matching CDR'; checked no one else
DW-1 Dr. Nair	-	-	-	Visitor entry 'A. Chauhan' 21:15; exit blank

76. **End of case file.**